

ENTERPRISE SUBSCRIPTION AGREEMENT

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Enterprise Subscription Agreement

This Enterprise Subscription Agreement is made on the date of the last signature below between Northwind Analytics sp. z o.o., a limited liability company with its registered office at ul. Prosta 51, 00-838 Warsaw, Poland, entered in the register of entrepreneurs under KRS number 0000712345 (the "Company"), and CloudVista GmbH, a company incorporated in Germany with its registered office at Rosenthaler Straße 40, 10178 Berlin, registered with the Charlottenburg local court under HRB 214567 (the "Provider").

Background: the Provider operates a hosted analytics platform and the Company wishes to subscribe to it for use across its business and its Affiliates on the terms of this Agreement.

1. Definitions and interpretation

1.1 In this Agreement the following words and expressions have the meanings given below unless the context requires otherwise.

1.2 "Affiliate" means, in relation to a party, any entity that directly or indirectly controls, is controlled by, or is under common control with that party, where "control" means ownership of more than fifty per cent of the voting rights or the power to direct management and policies.

1.3 "Applicable Law" means all laws, regulations, binding codes of practice and requirements of any regulatory body that apply to a party or to the performance of its obligations under this Agreement from time to time.

1.4 "Business Day" means a day other than a Saturday, Sunday or public holiday in Poland on which banks in Warsaw are open for general business.

1.5 "Charges" means the charges payable by the Company to the Provider as set out in the pricing schedule, as varied from time to time in accordance with the change control procedure.

1.6 "Company Data" means all data, including Personal Data, supplied by or on behalf of the Company or generated by the Provider in the course of providing the services, together with any data derived from such data.

1.7 "Confidential Information" means all information of a confidential nature disclosed by or on behalf of a party, whether before or after the Effective Date, in any form or medium, including information relating to the disclosing party's business, customers, finances, technology, products, know-how and trade secrets.

1.8 "Data Protection Legislation" means Regulation (EU) 2016/679 (the GDPR), the Polish Act of 10 May 2018 on the protection of personal data, and all other Applicable Law relating to the processing of personal data and privacy.

1.9 "Effective Date" means the date on which this Agreement has been signed by both parties.

1.10 "Good Industry Practice" means the exercise of the degree of skill, care, prudence, efficiency, foresight and timeliness that would reasonably be expected from a leading supplier of services similar to the services under this Agreement.

1.11 "Intellectual Property Rights" means patents, rights to inventions, copyright and related rights, trade marks, business names, domain names, rights in get-up, goodwill, rights in designs, rights in

computer software, database rights, rights to preserve the confidentiality of information and all other intellectual property rights, in each case whether registered or unregistered, in any part of the world.

1.12 "Personal Data", "Controller", "Processor", "Data Subject" and "Processing" have the meanings given to them in the Data Protection Legislation.

1.13 "Security Incident" means any actual or reasonably suspected unauthorised access to, or loss, disclosure, alteration or destruction of, Company Data.

1.14 "Authorised Users" means employees and contractors of the Company and its Affiliates who are authorised by the Company to use the Platform.

1.15 "Documentation" means the user guides, technical specifications and help centre articles for the Platform made available by the Provider, as updated from time to time.

1.16 "Minimum Commitment Period" has the meaning given in Schedule 6.

1.17 "Platform" means the Provider's hosted analytics platform known as CloudVista Enterprise, including the modules listed in Schedule 1 and all updates and upgrades made available during the Subscription Term.

1.18 "Subscription Term" means the initial term and any renewal term under the term clause.

1.19 Clause, schedule and paragraph headings do not affect the interpretation of this Agreement. The schedules form part of this Agreement and have effect as if set out in full in its body. A reference to this Agreement includes the schedules.

1.20 Words in the singular include the plural and vice versa. A reference to a statute or statutory provision is a reference to it as amended, extended or re-enacted from time to time. Any words following the terms "including", "include" or "in particular" are illustrative and do not limit the sense of the preceding words.

2. Subscription and access

2.1 Subject to the Company paying the Charges, the Provider grants the Company and its Authorised Users a non-exclusive, non-transferable right during the Subscription Term to access and use the Platform and the Documentation for the internal business purposes of the Company and its Affiliates.

2.2 The Company may increase the number of Authorised Users or add modules at any time by written order at the prices in Schedule 2, pro-rated for the remainder of the current subscription year.

2.3 The Company shall not, and shall ensure that Authorised Users do not, resell the Platform, attempt to reverse engineer it except as permitted by Applicable Law, or use it to build a competing product.

2.4 The Provider may suspend access of an individual Authorised User who breaches the acceptable use policy in the Documentation, after notifying the Company and giving it a reasonable opportunity to address the breach.

3. Provider obligations

3.1 The Provider shall provide the Platform substantially in accordance with the Documentation and the service levels in Schedule 3, using Good Industry Practice.

3.2 The Provider shall host the Platform and all Company Data in data centres located in the European

Union, currently in Frankfurt and Amsterdam, and shall not change the hosting location without the Company's prior written consent.

3.3 The Provider may update the Platform from time to time, provided that no update materially reduces the functionality, security or performance of the Platform. The Provider shall give at least thirty (30) days' notice of any change that requires action by the Company.

3.4 The Provider shall provide the support services described in Schedule 4.

4. Company obligations

4.1 The Company is responsible for the accuracy and legality of the Company Data it uploads and for the acts and omissions of its Authorised Users.

4.2 The Company shall keep login credentials confidential, enable multi-factor authentication for all Authorised Users, and notify the Provider promptly of any suspected unauthorised use of the Platform.

4.3 The Company shall maintain its own network connectivity and hardware as reasonably required to access the Platform in accordance with the Documentation.

5. Charges and payment

5.1 The Company shall pay the subscription fees and any other Charges set out in Schedule 2. Subscription fees are invoiced annually in advance at the start of each subscription year.

5.2 Invoices are payable within thirty (30) days of receipt. All amounts are exclusive of VAT, which is payable in addition.

5.3 If the Company fails to pay an undisputed invoice by its due date, the Provider may charge statutory interest for late payment in commercial transactions and, after giving thirty (30) days' further written notice, suspend access to the Platform until payment is made.

5.4 The Provider may increase the subscription fees on renewal by giving at least ninety (90) days' written notice before the end of the current term, provided that any increase does not exceed five per cent per year.

6. Service levels and support

6.1 The Provider shall make the Platform available in accordance with the availability commitment in Schedule 3 and shall pay the service credits set out there if it fails to do so.

6.2 Service credits are the Company's sole financial remedy for failure to meet the availability commitment, save that repeated failure constitutes a material breach as described in Schedule 3.

6.3 Planned maintenance shall take place outside 07:00 to 20:00 Warsaw time on Business Days and shall not exceed eight (8) hours in any calendar month.

7. Confidentiality

7.1 Each party shall keep the other party's Confidential Information secret and shall not use it for any purpose other than the performance of its obligations or the exercise of its rights under this Agreement.

7.2 Each party may disclose the other party's Confidential Information to its employees, officers,

representatives, subcontractors and advisers who need to know it for the purposes of this Agreement, provided that it ensures that each such recipient is bound by obligations of confidentiality no less protective than those in this clause.

7.3 A party may disclose Confidential Information to the extent required by Applicable Law, by a court of competent jurisdiction or by any governmental or regulatory authority, provided that, to the extent legally permitted, it gives the other party as much notice of the disclosure as possible.

7.4 The obligations in this clause do not apply to information that is or becomes generally available to the public other than through a breach of this Agreement, was lawfully in the possession of the receiving party before disclosure, or is independently developed without use of the disclosing party's Confidential Information.

7.5 On termination or expiry of this Agreement each party shall, at the request of the other, return or destroy the other party's Confidential Information, save that the Provider may retain copies required by Applicable Law, which remain subject to this clause.

7.6 The obligations of confidentiality in this clause continue for a period of five (5) years after termination or expiry of this Agreement, and indefinitely in respect of trade secrets.

8. Intellectual property

8.1 The Provider and its licensors own all Intellectual Property Rights in the Platform and the Documentation. Except for the rights expressly granted in this Agreement, no rights are transferred to the Company.

8.2 The Company owns all Intellectual Property Rights in Company Data and in reports and dashboards created by Authorised Users using the Platform.

8.3 The Company grants the Provider a non-exclusive licence to use Company Data during the Subscription Term solely to provide the Platform and support services.

8.4 The Provider may use anonymised and aggregated usage statistics that do not identify the Company or any individual to improve the Platform.

9. Data protection

9.1 The parties acknowledge that, for the purposes of the Data Protection Legislation, the Company is the Controller and the Provider is the Processor of any Personal Data processed on behalf of the Company under this Agreement.

9.2 The Provider shall process Personal Data only in accordance with the data processing terms in Schedule 5, which set out the subject matter, duration, nature and purpose of the processing, the types of Personal Data and the categories of Data Subjects, and which meet the requirements of Article 28 of the GDPR.

9.3 The Provider shall notify the Company without undue delay, and in any event within twenty-four (24) hours, after becoming aware of a Security Incident, and shall provide all information and cooperation reasonably required by the Company to meet its obligations under the Data Protection Legislation.

9.4 The Provider shall not transfer Personal Data outside the European Economic Area without the prior written consent of the Company and, where consent is given, only on the basis of an appropriate

transfer mechanism recognised by the Data Protection Legislation.

10. Information security

10.1 The Provider shall maintain an information security management system certified to ISO/IEC 27001, or an equivalent standard approved in writing by the Company, for the duration of this Agreement.

10.2 The Provider shall implement appropriate technical and organisational measures to protect Company Data against accidental, unauthorised or unlawful processing, destruction, loss, damage or disclosure, having regard to the state of the art, the cost of implementation and the risks to Data Subjects.

10.3 The Provider shall ensure that all Company Data is encrypted in transit using TLS 1.2 or higher and at rest using AES-256 or an equivalent algorithm, and that encryption keys are managed in accordance with Good Industry Practice.

10.4 The Provider shall carry out penetration tests of the systems used to provide the services at least once in each calendar year using an independent tester, and shall share a summary of the results and its remediation plan with the Company within thirty (30) days of receiving the report.

10.5 The Provider shall maintain role-based access controls, multi-factor authentication for administrative access, and logs of access to Company Data that are retained for at least twelve (12) months and made available to the Company on request.

11. Warranties

11.1 Each party warrants that it has full capacity and authority to enter into and perform this Agreement and that this Agreement is executed by its duly authorised representatives.

11.2 The Provider warrants that it will perform its obligations with reasonable skill and care, in accordance with Good Industry Practice and Applicable Law, and using appropriately experienced, qualified and trained personnel.

11.3 The Provider warrants that the services and any deliverables will not, when used in accordance with this Agreement, infringe the Intellectual Property Rights of any third party.

11.4 The Provider warrants that it will not introduce into the Company's systems any virus, malware, time bomb, trojan horse or other harmful code, and that it will use up-to-date industry-standard tools to detect and prevent such code.

11.5 Except as expressly stated in this Agreement, all warranties, conditions and other terms implied by statute or common law are, to the fullest extent permitted by law, excluded from this Agreement.

12. Indemnities

12.1 The Provider shall indemnify the Company against all losses, damages, costs and expenses, including reasonable legal fees, arising out of any claim that the Company's use of the services or deliverables in accordance with this Agreement infringes the Intellectual Property Rights of a third party.

12.2 The indemnity in the previous paragraph does not apply to the extent a claim arises from modification of the deliverables by the Company without the Provider's consent or from the

combination of the deliverables with items not supplied or approved by the Provider.

12.3 A party seeking an indemnity shall notify the other party of the claim promptly, shall not make any admission without the other party's consent, and shall give the other party conduct of the defence and reasonable assistance at the other party's expense.

12.4 If an infringement claim is made or is likely to be made, the Provider may at its own cost procure the right for the Company to continue using the affected item, or modify or replace it so that it is no longer infringing without any reduction in functionality.

13. Limitation of liability

13.1 Nothing in this Agreement limits or excludes liability for death or personal injury caused by negligence, for fraud or fraudulent misrepresentation, for wilful misconduct or gross negligence, or for any other liability that cannot be limited or excluded by Applicable Law.

13.2 Subject to the previous paragraph, each party's total aggregate liability arising out of or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty or otherwise, is limited to the Charges paid or payable by the Company in the twelve (12) months immediately preceding the event giving rise to the claim.

13.3 Neither party is liable for any loss of profits, loss of business, loss of goodwill or any indirect or consequential loss, save that the Company's losses arising from the Provider's breach of the data protection or confidentiality clauses are recoverable as direct losses within the limit set out above.

13.4 The limitation in this clause applies to the aggregate of all claims and is not reset by the renewal of this Agreement or by the entry into of any statement of work.

14. Term and renewal

14.1 This Agreement starts on the Effective Date and continues for an initial term of twelve (12) months.

14.2 After the initial term this Agreement renews for successive periods of twelve (12) months unless either party gives the other written notice of non-renewal at least sixty (60) days before the end of the then-current term.

14.3 The Provider shall remind the Company in writing of the upcoming renewal date at least ninety (90) days before the end of each term.

15. Termination

15.1 Either party may terminate this Agreement for convenience by giving the other party at least thirty (30) days' written notice. On termination for convenience by the Company, the Provider shall refund any prepaid subscription fees for the period after the termination date.

15.2 Either party may terminate this Agreement with immediate effect by written notice if the other party commits a material breach that is not remedied within thirty (30) days of written notice.

15.3 Either party may terminate this Agreement with immediate effect by written notice if the other party becomes insolvent, enters into restructuring or bankruptcy proceedings, or ceases to carry on business.

16. Consequences of termination

16.1 For thirty (30) days after termination or expiry, the Provider shall allow the Company to export all Company Data in a standard machine-readable format at no additional charge.

16.2 After the export period the Provider shall delete all Company Data from the Platform and its backups within ninety (90) days and confirm the deletion in writing.

16.3 Termination does not affect any rights or remedies accrued before termination, and clauses that by their nature survive termination continue in force.

17. Continuity of service and escrow

17.1 The Provider shall deposit the source code of the Platform, together with build instructions and deployment scripts, with an independent escrow agent approved by the Company, and shall update the deposit within thirty (30) days of each major release.

17.2 The Company may obtain release of the deposit if the Provider becomes insolvent, ceases to maintain the Platform, or fails to remedy a P1 incident within ten (10) Business Days, and may then use the deposit solely to maintain the Platform for its own internal purposes.

17.3 The Provider shall bear the fees of the escrow agent. The Company may require a verification test of the deposit once in each year at the Provider's cost.

18. Business continuity and disaster recovery

18.1 The Provider shall maintain a business continuity and disaster recovery plan that enables it to continue providing the services, or to restore them within the recovery time objective of four (4) hours and the recovery point objective of one (1) hour, following a disruptive event.

18.2 The Provider shall test the plan at least once in each calendar year, including a full failover test of production systems, and shall provide the Company with a written summary of the test results, any gaps identified and the actions taken to close them.

18.3 The Provider shall invoke the plan promptly on the occurrence of a disruptive event and shall keep the Company informed of progress at intervals of no more than four (4) hours until the services are fully restored.

18.4 The existence of a force majeure event does not relieve the Provider of its obligation to implement the plan, and the Provider may rely on force majeure only to the extent that a properly implemented plan would not have prevented or mitigated the effect of the event.

19. Governance and reporting

19.1 The parties shall hold an operational review each month, attended by their relationship and contract managers, to review performance against the service levels, open incidents, risks, changes and forecast demand.

19.2 The parties shall hold a strategic review each quarter, attended by a senior executive of each party, to review the overall relationship, the roadmap, commercial matters and any escalated issues.

19.3 The Provider shall prepare and circulate an agenda and a written performance report at least three (3) Business Days before each review, and minutes recording decisions and actions within three (3) Business Days after it.

19.4 Each party shall ensure that its representatives at the reviews have the authority to make decisions on the matters on the agenda. Decisions that vary this Agreement take effect only through the change control procedure.

20. Continuous improvement and benchmarking

20.1 The Provider shall propose at least twice in each year ways to improve the quality, efficiency or cost of the services, including through new technology, automation and changes in working practices, together with an estimate of the benefits and the investment required.

20.2 The Company may, not more than once in any twenty-four (24) month period, appoint an independent benchmarker to compare the Charges and service levels with those of comparable services provided by other leading suppliers.

20.3 If the benchmark shows that the Charges exceed the upper quartile of the comparison group by more than five per cent, the parties shall negotiate in good faith an adjustment to the Charges to bring them within that range.

21. Non-solicitation

21.1 During the term of this Agreement and for twelve (12) months after its termination or expiry, neither party shall, without the other party's prior written consent, directly or indirectly solicit for employment any person employed by the other party who was materially involved in the services in the preceding twelve (12) months.

21.2 The restriction in the previous paragraph does not prevent either party from employing a person who responds to a general advertisement not targeted at the other party's personnel, or who approaches it on their own initiative.

22. Publicity

22.1 Neither party shall make any public announcement or issue any press release concerning this Agreement or the relationship between the parties without the prior written approval of the other party, except as required by Applicable Law or the rules of a stock exchange.

22.2 The Provider shall not use the name, trade marks or logos of the Company or its Affiliates in any marketing material, customer list or case study without the Company's prior written consent, which may be withdrawn at any time.

23. Conflicts of interest

23.1 The Provider shall take appropriate steps to ensure that neither it nor its personnel is placed in a position where there is or may be an actual or potential conflict between their interests and the interests of the Company in the performance of this Agreement.

23.2 The Provider shall promptly notify the Company in writing of any actual or potential conflict of interest as soon as it becomes aware of it, and shall take such steps as the Company reasonably requires to remove or manage the conflict.

24. Environmental and social responsibility

24.1 The Provider shall comply with the Company's supplier code of conduct as notified to it from time to time, including its requirements on environmental management, health and safety, diversity and fair working conditions.

24.2 The Provider shall report annually on the energy consumption and estimated greenhouse gas emissions attributable to the services, using a recognised methodology, and shall cooperate with reasonable requests from the Company for information needed for its own sustainability reporting.

24.3 The Provider shall use reasonable endeavours to host the services in data centres powered by renewable energy and to reduce the environmental impact of the services over the term of this Agreement.

25. Force majeure

25.1 Neither party is in breach of this Agreement nor liable for delay in performing its obligations if the delay or failure results from events, circumstances or causes beyond its reasonable control, including acts of God, flood, fire, epidemic, war, terrorist attack, civil commotion, or failure of a utility service, but excluding strikes of the affected party's own workforce.

25.2 The affected party shall promptly notify the other party of the force majeure event and its expected duration and shall use all reasonable endeavours to mitigate its effect. The time for performance is extended by a period equivalent to the period during which performance is prevented.

25.3 If the period of delay or non-performance continues for sixty (60) days, the party not affected may terminate this Agreement by giving fourteen (14) days' written notice to the affected party.

26. Anti-bribery, sanctions and modern slavery

26.1 Each party shall comply with all Applicable Law relating to anti-bribery and anti-corruption, including the Polish Criminal Code and, where applicable, the UK Bribery Act 2010 and the US Foreign Corrupt Practices Act, and shall maintain adequate procedures to prevent bribery by persons associated with it.

26.2 The Provider warrants that neither it nor any of its Affiliates, directors or officers is the subject of sanctions administered by the European Union, the United Nations, the United Kingdom or the United States, and shall notify the Company immediately if this changes.

26.3 The Provider shall take reasonable steps to ensure that there is no slavery, servitude, forced labour or human trafficking in its business or its supply chains, and shall provide information on the steps taken on the Company's reasonable request.

27. Records and audit

27.1 The Provider shall keep complete and accurate records relating to the services, the Charges and its compliance with this Agreement for at least six (6) years after termination or expiry.

27.2 The Company, or an independent auditor appointed by it and bound by confidentiality obligations, may audit the Provider's compliance with this Agreement on giving at least ten (10) Business Days' notice, no more than once in any twelve (12) month period save where an audit is required by a regulator or follows a Security Incident.

27.3 The Provider shall give the auditor reasonable access to its premises, systems, records and personnel and shall promptly remedy any non-compliance identified by the audit. If an audit reveals an overcharge of more than five per cent, the Provider shall bear the reasonable cost of the audit.

28. Assignment and subcontracting

28.1 The Provider shall not assign, transfer, subcontract or deal in any other manner with any of its rights or obligations under this Agreement without the Company's prior written consent, which shall not be unreasonably withheld.

28.2 The Provider remains responsible for all acts and omissions of its subcontractors as if they were its own and shall ensure that each subcontract contains obligations equivalent to those in this Agreement regarding confidentiality, data protection and information security.

28.3 The Company may assign this Agreement to any of its Affiliates or to a successor to all or substantially all of its business on written notice to the Provider.

29. Notices

29.1 Any notice under this Agreement shall be in writing and delivered by hand, sent by registered post or courier to the address of the relevant party set out at the beginning of this Agreement, or sent by email to the address notified by the relevant party for that purpose.

29.2 A notice is deemed received, if delivered by hand, at the time of delivery; if sent by registered post or courier, on the third Business Day after posting; and if sent by email, at the time of transmission, provided that no notice of non-delivery is received.

29.3 This clause does not apply to the service of proceedings or other documents in any legal action or, where applicable, any arbitration.

30. General

30.1 This Agreement constitutes the entire agreement between the parties and supersedes all previous agreements, promises, assurances and understandings between them relating to its subject matter.

30.2 No variation of this Agreement is effective unless it is in writing and signed by the parties or their authorised representatives.

30.3 A failure or delay by a party to exercise any right or remedy does not constitute a waiver of that or any other right or remedy. If any provision of this Agreement is found invalid or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, and the remaining provisions are not affected.

30.4 Nothing in this Agreement creates a partnership, joint venture or agency between the parties. A person who is not a party to this Agreement has no right to enforce any of its terms.

30.5 This Agreement may be executed in any number of counterparts, each of which is an original and all of which together constitute one agreement. Electronic signatures are valid and binding.

31. Governing law

31.1 This Agreement and any non-contractual obligations arising out of or in connection with it are governed by the laws of Poland.

32. Dispute resolution

32.1 The parties shall attempt in good faith to resolve any dispute through their respective relationship managers and, failing resolution within twenty (20) Business Days, through their senior executives.

32.2 Any dispute not resolved under the previous paragraph shall be submitted to the exclusive jurisdiction of the common courts competent for Warsaw, Poland.

Signatures

Signed by the authorised representatives of the parties on the dates written below.

For Northwind Analytics sp. z o.o.:

Name: Anna Kowalska

Title: Chief Executive Officer

Date: _____

Signature: _____

For CloudVista GmbH:

Name: Jonas Richter

Title: Managing Director

Date: _____

Signature: _____

Schedule 1: Platform modules

Module	Description	Status
Core analytics	Dashboards, ad hoc queries and scheduled reports for up to 250 named users	Included
Data connectors	Managed connectors for 40 sources including ERP, CRM, advertising and payment systems	Included
Embedded analytics	White-labelled dashboards embedded in the Company's customer portal	Add-on
Governance pack	Row-level security, audit trail export and data retention policies	Included
Forecasting	Time-series forecasting with automated backtesting and explainability reports	Add-on
Premium support	24/7 support with a named technical account manager	Add-on
Sandbox environment	Isolated non-production environment refreshed weekly with masked data	Included
API access	REST and SQL interfaces with 50 million calls per month	Included

1.1 Included modules are covered by the base subscription fee. Add-on modules are available at the prices in Schedule 2 and may be added or removed at each renewal.

1.2 New modules released during the Subscription Term that replace or materially extend an included module are made available at no additional charge.

1.3 The Provider shall give at least twelve (12) months' notice before withdrawing any included module, and shall offer a functionally equivalent replacement.

Schedule 2: Charges

Item	Unit	Annual price (EUR)
Base subscription (250 Authorised Users)	Per year	186,000
Additional Authorised Users	Per 25 users	14,500
Embedded analytics	Per year	42,000
Forecasting	Per year	28,000
Premium support	Per year	24,000
Additional API calls	Per 10 million calls	3,200

2.1 Prices are fixed for the initial term and are subject to the renewal price clause thereafter.

2.2 Add-on modules and additional users ordered during a subscription year are invoiced on the order date, pro-rated to the end of that subscription year, and payable on the same terms as other invoices.

Schedule 3: Availability and service credits

Monthly availability	Service credit (% of monthly fee)
99.9% or higher	0%
99.5% to below 99.9%	5%
99.0% to below 99.5%	10%
95.0% to below 99.0%	20%
Below 95.0%	35%

3.1 Availability is measured each calendar month as the percentage of minutes in which the Platform's production interface responds successfully to synthetic monitoring from two independent locations, excluding planned maintenance.

3.2 Availability below 99.0% in any three (3) months within a rolling twelve (12) month period constitutes a material breach that entitles the Company to terminate under the termination clause.

3.3 The Provider shall publish availability reports on its status page and send a monthly report to the Company within five (5) Business Days after the end of each month.

Schedule 4: Support services

Priority	Definition	Response time	Target resolution
P1	Platform unavailable or data loss	30 minutes, 24/7	4 hours
P2	Major function impaired, no workaround	2 business hours	1 Business Day
P3	Function impaired, workaround available	1 Business Day	5 Business Days
P4	Question or cosmetic issue	2 Business Days	Next release

4.1 Support is available by portal, email and telephone. The Company may designate up to ten (10) support contacts.

4.2 The Provider shall provide a root cause analysis for every P1 incident within five (5) Business Days of resolution.

Schedule 5: Data processing addendum

5.1 This addendum sets out the terms required by Article 28(3) of the GDPR for the processing of Personal Data by the Provider on behalf of the Company.

5.2 Subject matter and duration: hosting and processing of Company Data within the Platform for the Subscription Term and the export period.

5.3 Nature and purpose: storage, querying, visualisation and support access to Company Data as instructed by the Company through its use of the Platform.

5.4 Types of Personal Data and Data Subjects: contact, account and transaction data of the Company's customers, and identification data of Authorised Users.

5.5 The Provider shall process Personal Data only on documented instructions from the Company, ensure the confidentiality of persons authorised to process it, implement the measures required by Article 32 of the GDPR, and assist the Company with Data Subject requests and with its obligations under Articles 32 to 36 of the GDPR.

5.6 The Provider may engage the sub-processors listed in its trust centre on the Effective Date. It shall give at least thirty (30) days' notice of any new sub-processor, during which the Company may object on reasonable grounds.

5.7 The Provider shall make available to the Company all information necessary to demonstrate compliance with this addendum and allow for audits, including inspections, by the Company or an auditor mandated by it.

Schedule 6: Special conditions

6.1 These special conditions were negotiated in return for the discounted pricing in Schedule 2 and take precedence over the body of this Agreement where they conflict with it.

6.2 Minimum Commitment Period means the period of thirty-six (36) months starting on the Effective Date.

6.3 Notwithstanding clause 15.1, the Company may not terminate this Agreement for convenience during the Minimum Commitment Period, and any notice of termination for convenience given during that period has no effect.

6.4 During the Minimum Commitment Period the Provider shall not increase the subscription fees for the modules and user numbers listed in Schedule 2 on the Effective Date.

6.5 The Provider shall provide up to twenty (20) days of onboarding consultancy during the first six (6) months at no additional charge.

Schedule 7: Security requirements

The Provider shall implement and maintain at least the following controls throughout the Subscription Term.

Area	Control	Evidence
Governance	Named chief information security officer and documented security policy reviewed annually	Policy and organisation chart
Certification	ISO/IEC 27001 certification covering the Platform and its hosting	Current certificate
Assurance	SOC 2 Type II report covering security, availability and confidentiality	Annual report under NDA
Personnel	Background checks for staff with access to Company Data, and annual security training	Training records
Access	Least-privilege access, quarterly access reviews and multi-factor authentication for all staff	Review logs
Encryption	TLS 1.2 or higher in transit and AES-256 at rest with keys in a managed key service	Architecture description
Vulnerabilities	Critical vulnerabilities patched within 7 days and high within 30 days	Patch reports
Testing	Annual independent penetration test and continuous automated scanning	Summary report
Logging	Security logs retained for 12 months and monitored by a 24/7 security operations centre	Monitoring description
Backups	Daily encrypted backups replicated to a second EU region, restore tested quarterly	Restore test records
Development	Secure development lifecycle with code review, dependency scanning and secrets scanning	SDLC policy
Incidents	Documented incident response plan tested annually, with customer notification within 24 hours	Test report

7.1 The Provider shall not materially reduce the level of security provided by these controls during the Subscription Term.

7.2 The Provider shall answer the Company's reasonable security questionnaires once in each year and within ten (10) Business Days of any Security Incident.

7.3 Where the Provider becomes aware that it cannot meet any control, it shall notify the Company within five (5) Business Days together with a remediation plan and timetable.

Schedule 8: Implementation plan

The Provider shall implement the Platform for the Company in the phases below. Dates are measured from the Effective Date.

Phase	Activities	Company inputs	Completion
1. Mobilisation	Kick-off, project plan, access provisioning, single sign-on configuration	Identity provider details, named project lead	Week 2
2. Data onboarding	Connector set-up for ERP, CRM and billing systems; initial historical loads	Source system credentials, data owners	Week 6
3. Modelling	Semantic layer for finance, sales and operations; metric definitions signed off	Metric owners, sample reports	Week 10
4. Dashboards	Migration of 60 priority dashboards with reconciliation against legacy reports	Report inventory, acceptance testers	Week 14
5. Embedded analytics	Customer portal integration, theming and row-level security for external users	Portal team, test tenants	Week 18
6. Hypercare	Daily health checks, defect triage and weekly steering meetings	Support contacts	Week 22

8.1 Each phase ends with a completion review at which the Company confirms in writing that the exit criteria for the phase are met. The Company shall not unreasonably withhold or delay confirmation.

8.2 If the Provider fails to complete a phase within four (4) weeks of its planned completion date for reasons within its control, the Company is entitled to a credit of five per cent of the first-year subscription fee for each further week of delay, up to a maximum of twenty-five per cent.

8.3 The Provider shall assign a named implementation manager and a solutions architect for the duration of the implementation, and shall not replace them without the Company's consent except for reasons outside the Provider's control.

8.4 The Provider shall deliver administrator training for up to fifteen (15) Company staff and end-user training material in English and Polish before the end of Phase 4.

8.5 Implementation risks, issues and decisions shall be recorded in a shared log reviewed at a weekly steering meeting attended by both project leads.